REPORTABLE (36)

WALTER MUTOWO
v
DELTA BEVERAGES (PRIVATE) LIMITED

SUPREME COURT OF ZIMBABWE
HARARE: 22 JULY 2024 & 4 JUNE 2026

The applicant in person

Ms *S. Ndlovhu* with *K. Ncube,* for the respondent.

IN CHAMBERS

BHUNU JA:

1. This is an application for condonation and extension of time within which to file an appeal against the judgment of the Labour Court (the Court *a quo*). The application is brought in terms of r 43 of the Supreme Court Rules 2018.

2. At the conclusion of hearing submissions from both parties, I dismissed the applicant's application with costs in a comprehensive extempore judgment. The application was dismissed for the simple reason that the cause of action had prescribed.

PRELIMINARY POINT

3. At the outset, the applicant raised a preliminary objection contending that the notice of opposition is a nullity for want of compliance with the rules. To that end, he submitted that the respondent had failed to properly paginate the record of proceedings in terms of the rules of court. Counsel for the respondent countered that the objection *in limine* is ill-conceived as the rules relating to pagination of records of proceedings have since been amended. It was her submission that the rule relating to the pagination and indexing of documents were amended upon the advent of the Integrated Electronic Case Management system (IECMS).

4. Rule 11 (c) now provides for automatic electronic pagination upon consolidation of the record of proceedings. It is the responsibility of the applicant to consolidate the record to prompt the automatic electronic pagination.

5. I sustained counsel's counter argument and dismissed the applicant's objection *in limine* on the basis that the applicant was apparently unaware of the amendment to the rules militating against his objection *in limine* grounded on the position of the law before the advent of the IECMS and the consequent amendment to the rules. In any case the consolidated electronic record is appropriately paginated in accordance with the rules of Court.

BACKGROUND FACTS

6. The applicant was employed by the respondent as its Operations Manager with effect from 15 January 2018 up to 13 April 2018. He was placed on a three-month non-renewable probationary period in terms of his contract of employment. At the end of his probationary period he was assessed and his performance was found to be unsatisfactory.

7. The assessment was carried out by the respondent's Operations Executive on 13 April 2018. On 11 May 2018 he communicated in writing to the applicant advising him that his performance had been deemed to be unsatisfactory. He intimated to him that the employer had in that regard decided to extend his probation period by one month.

8. At the end of the purported extended probationary period, the applicant's performance was again assessed and still found to be unsatisfactory. He was then advised of the termination of his contract of employment. On 15 May 2018 he was formally advised in writing of the termination of his contract of employment for incompetence.

9. On 14 May 2018 the applicant wrote back contesting the credibility of the assessment of his performance. The applicant again wrote to the respondent intimating that the extension of

his probationary period was unilateral and illegal and to that extent a legal nullity. That being the case, the subsequent termination of his contract of employment based on an illegality was equally unlawful.

10. The respondent wrote back insisting that the extension of the probationary period was lawful together with the termination of his contract of employment.

11. Aggrieved, the applicant approached the High Court in search of declaratory relief without success. The High Court struck the matter off the roll on the basis that he had approached the wrong forum. It thus declined jurisdiction. Four years down the line the applicant approached the court *a quo* for condonation and extension of time within which to file an application for review.

12. The court *a quo* dismissed the application on the basis that the main cause of action had prescribed. Dissatisfied by the decision of the court *a quo*, the applicant approached this Court on appeal for relief in a bid to reverse the judgment sought to be appealed against.

13. Counsel for the respondent has raised the special plea of prescription. It was her submission that the applicant's cause of action arose on 13 May 2018 upon termination of his contract of employment. In terms of s 94 of the labour Act [*Chapter 28:01*], he had two years within which to seek relief in terms of the Act. He however approached the High Court which declined jurisdiction. Thereafter he approached the court *a quo* seeking condonation for the late filing of an application for review. In the proposed review he sought a declarator to the effect that his dismissal was unlawful. He was unsuccessful in his endeavor. It was his contention that the High Court judgment under case number HC 2642/20 declining jurisdiction was invalid.

14. The applicant conceded that his cause of action had prescribed through the effluxion of time. He however contended that the respondent had not pleaded the defence of prescription in terms of the Prescription Act [*Chapter 8:11*], but only in terms of the Labour Act. Counsel for the respondent countered that the defence of prescription could be raised at any stage as a matter of law in terms of s 20 (2) of the Prescription Act [*Chapter 8:11*]

THE *EX TEMPORE* JUDGMENT

15. After hearing argument from both parties, I delivered the following extempore judgment:

> "1. The cause of action arose on 1 June 2018. The applicant approached the High Court for relief which declined jurisdiction under case number 2642/20. The applicant having failed to successfully prosecute his case in the High Court, the running of prescription was not interrupted.
>
> 2. The applicant's contention that the High Court judgment which declined jurisdiction is invalid does not help his case. That submission supports the respondent's case as an invalid judgment cannot interrupt the running of prescription or amount to a successful prosecution of the applicant's cause of action.
>
> 3. The applicant admits at the very least that he only took action 2 years 4 months after his cause of action had arisen. There is therefore merit in respondent's plea that the applicant's cause of action has prescribed in terms of s 94 of the Labour Act.
>
> 4. That being the case, there is no need to address all the other issues raised as prescription has no remedy once it has run its full course without interruption.
>
> 5. The applicant's case having prescribed, there are no reasonable prospects of success on appeal.
>
> 6. It is accordingly ordered that the application be and is hereby dismissed with costs."

EXPOUNDING ON THE *EX TEMPORE* JUDGMENT

16. I consider the *ex tempore* judgment cited above to have been comprehensive enough such that it hardly needs any further elucidation. It is however necessary to shed light on and

clarify certain aspects of the law as the applicant has asked for full reasons for the judgment.

17. The application raises the following legal points which need clarification:

    (a) Whether s 94 of the Labour Act excludes the application of the Prescription Act.

    (b) Whether the applicant's resort to the High Court which declined jurisdiction interrupted the running of prescription.

    (c) Why the court dismissed the application instead of striking it off the roll.

Whether s 94 of the Labour Act excludes the application of the Prescription Act

18. Both Acts provide for the prescription of claims by effluxion of time. They however provide for different periods of prescription. In this case the Labour Act provides a prescription period of 2 years whereas the Prescription Act provides a prescription period of 3 years.

19. Section 94 of the Labour Act provides as follows:

> "**94 Prescription of disputes**
> (1) Subject to subs (2), no labour officer shall entertain any dispute or unfair labour practice unless…
> (a) it is referred to him; or
>
> (b) has otherwise come to his attention;
> within two years from the date when the dispute or unfair labour practice first arose.
>
> (2) Subsection (1) shall not apply to an unfair labour practice which is continuing at the time it is referred to or comes to the attention of a labour officer.
>
> (3) For the purpose of subs (1), a dispute or unfair labour practice shall be deemed to have first arisen on the date when --
>
> (a) the acts or omissions forming the subject of the dispute or unfair labour practice first occurred; or
>
> (b) the party wishing to refer the dispute or unfair labour practice to the labour officer first became aware of the acts or omissions

> referred to in para (a), if such party cannot reasonably be expected to have known of such acts or omissions at the date when they first occurred."

20. The applicant admits that he only sought legal recourse after 2 years 4 months had elapsed. The respondent pleaded prescription in terms of the Labour Act. The applicant having admitted that prescription has run its full course in terms of s 94 of the Labour Act, it ceased to run anymore. Prescription could not continue to run after it had run its full course.

21. The effect of prescription after running its full course in terms of the Labour Act was to extinguish the applicant's claim regardless of the merits of his intended suit. Reference to the Prescription Act was therefore incompetent and irrelevant. More so, because the Prescription Act is subservient to the Labour Act in terms of s 2A (3) which provides that the Act shall prevail over any other enactment inconsistent with it. As the period of prescription provided for in terms of the Prescription Act is inconsistent with that provided for in the Labour Act, the period prescribed in the Labour Act takes precedence to the exclusion of that laid down in the Prescription Act.

22. In *Mawire* v *Riozim* SC 13/21, this Court in interpreting s 94 of the Labour Act affirmed that the prescription period of unfair labour practice disputes is 2 years, when it observed that:

> "A literal reading of the above provision is that adjudication of any dispute of unfair labour practice is restricted to disputes that will have occurred within two years from the date when the dispute or unfair labour practice first arose. However, the exception to that rule is that, if an unfair labour practice is continuing at the time it is referred or comes to the attention of the Labour officer, then the two year prescription period in subs (1) does not apply."

23. As the applicant's dispute is not of a continuing nature, the exception to the general rule does not apply.

Whether the applicant's resort to the High Court which declined jurisdiction interrupted the running of prescription.

24. Section 3 of the Prescription Act provides for the application of the Prescription Act in the following terms:

> "**Application of Act**
> (1) This Act shall bind the State.
>
> (2) In so far as any right or obligation of any person in relation to any other person is governed by customary law this Act shall not apply"

25. It appears to me that on a proper interpretation of s 3 of the Prescription Act, it is of universal application save where it is limited by statute. For purposes of this case, it is limited by s 94 of the Labour Act in respect of the length of the period of prescription which is inconsistent with the Labour Act. What this means is that the other aspects of the Act which are not inconsistent with the Labour Act are applicable to labour matters. For instance the defences open to a litigant under s 19 of the prescription Act are available to a litigant faced with a plea of prescription. The section provides for judicial interruption of the running of prescription. The applicant raised the defence of judicial interruption against the running of prescription based on his abortive application to the High court.

26. It is common cause that his application to the High Court was unsuccessful. It is however, trite that for the defence of judicial interruption of prescription to succeed, the applicant ought to have successfully prosecuted his application in the High Court to finality. Section 19 (2) and (3) provide as follows:

> "(2) The running of prescription shall, subject to subs (3), be interrupted by the service on the debtor of any process whereby the creditor claims payment of the debt. Unless the debtor acknowledges liability, the interruption of prescription in terms of subs (2) shall lapse and the running of prescription shall not be deemed to have been interrupted, if the creditor –
>
> (a) does not successfully prosecute his claim under the process in question to final judgment; or

(b) successfully prosecutes his claim under the process in question to final judgment, but abandons the judgment or the judgment is set aside."

27. It stands to reason that as the applicant did not successfully prosecute his application in the High Court, the running of prescription in this case lapsed and it was deemed not to have been interrupted upon the High Court declining jurisdiction. That being the case, the applicant delayed in bringing his appeal to the correct court for more than four years. The delay is inordinate and unpardonable.

Why the court dismissed the application instead of striking it off the roll.

28. The norm is that when the court finds that there is a fatal irregularity it strikes the matter off the roll. This is to give the litigant a chance to correct his/her mistakes and come back to court with a corrected version of the case. Where however the facts are that the case is incorrigible and there are no prospects of a comeback to court, the correct order is to dismiss the application so as to put the matter to rest.

29. In this case, in the face of the applicant's admission that his case has prescribed in terms of the Labour Act, there can be no reasonable prospect of a comeback to court apart from an abuse of process. The words of GWAUNZA JA, as she then was, in *Mudyavanhu* v *Saruchera* SC 75/15 are instructive when she said:

> "It is noted that a number of cases have been struck off the roll by this Court on the ground that the relief sought was not exact in nature and that as a result the related notice of appeal was incurably defective. See *Ndlovu & Anor* v *Ndlovu & Anor (supra).* However, in this case, the Court found that the appeal was not only incurably defective but wrong and bad in law. **The appeal could not properly be struck off the roll because the appellant had no avenue, legally or procedurally, to follow in case he was inclined to bring the same appeal before this Court**."

30. By the same token, in this case the applicant has no reasonable prospect of redemption in circumstances where prescription has irrevocably set in and run its full course. As already pointed out, prescription has no antidote once it has run its full course. The merits and

demerits of the applicant's application are therefore irrelevant in circumstances where the applicant's cause of action has prescribed. Thus the dismissal of the applicant's application was inevitable.

31. It is for the foregoing reasons that the Court issued an order dismissing the application with costs.

KUDYA JA : I agree

MAFUSIRE AJA : I agree

Gill, Godlonton & Gerrans, respondent's legal practitioners.